

TERMS AND CONDITIONS OF SALE

PREAMBLE

These Terms and Conditions of Sale (T&Cs) govern the contractual relationship between:

Vanessa Phommasone
Sole Proprietor (Micro-Enterprise)
SIRET: 504 282 492 00033

Registered office:
2 rue des Pastoureaux
45000 Orléans – France

Hereinafter referred to as “the Provider”

and any individual or legal entity wishing to benefit from the services offered on the website.

The services offered include in particular:

- yoga classes
- individual or group sessions
- online programs
- wellness and body practice support

ARTICLE 1 – SCOPE

These Terms apply to any booking or purchase made with the Provider, whether:

- via the website
- by email
- by phone
- through a payment or course-hosting platform

Any order implies full acceptance of these Terms.

The Provider reserves the right to modify these Terms at any time. The applicable Terms are those in force at the date of the order.

ARTICLE 2 – SERVICES

The Provider offers in particular:

- private yoga sessions
- group classes
- online sessions
- digital programs accessible via the internet

Services may be delivered:

- in person
- remotely
- via an online learning platform

The Provider reserves the right to refuse any request that does not fall within her professional scope.

ARTICLE 3 – BOOKING

Bookings may be made:

- via the website
- by email
- by phone
- via a dedicated platform

A booking is confirmed only after:

- confirmation by the Provider
- receipt of payment or any required deposit

The Provider reserves the right to refuse a booking in case of previous payment disputes.

ARTICLE 4 – PRICING

Prices are indicated in euros.

As a micro-enterprise, prices are exempt from VAT in accordance with Article 293B of the French Tax Code.

The Provider reserves the right to modify prices at any time. Services are billed based on the rate in force at the time of booking.

ARTICLE 5 – PAYMENT TERMS

Payment may be made by:

- bank transfer
- online payment
- cash (for in-person sessions)

For online services or digital programs, payment is required before access to the content.

For certain services, a deposit may be required at the time of booking.

ARTICLE 6 – RIGHT OF WITHDRAWAL

In accordance with Article L221-18 of the French Consumer Code, the Client has a period of 14 days to exercise their right of withdrawal for distance purchases.

However, in accordance with Article L221-28, this right does not apply when:

- the service has already begun
- the Client has accessed digital content

For online programs, access to the content constitutes a waiver of the right of withdrawal.

ARTICLE 7 – CANCELLATION AND RESCHEDULING

Any cancellation or modification must be made at least 48 hours before the session.

In case of absence without sufficient notice, the session will be considered due.

Sessions may be rescheduled by mutual agreement between the Provider and the Client.

ARTICLE 8 – LIABILITY

The services fall within the field of wellness and personal development.

They do not constitute:

- medical treatment
- therapeutic intervention
- medical consultation

The Client acknowledges practicing under their own responsibility.

The Client agrees to inform the Provider of any medical condition that may affect the practice.

If in doubt, the Client must consult a healthcare professional before participating.

ARTICLE 9 – INSURANCE

The Provider holds professional liability insurance covering the offered services.

The Provider cannot be held liable for damages resulting from:

- improper use of exercises
 - failure to disclose medical conditions
 - negligence on the part of the Client
-

ARTICLE 10 – INTELLECTUAL PROPERTY

All content provided within programs or on the website (texts, videos, photos, exercises, educational materials) is the exclusive property of the Provider.

Any reproduction, distribution, sharing, or resale is strictly prohibited without prior written authorization.

Programs are intended for personal use only.

ARTICLE 11 – FORCE MAJEURE

The Provider cannot be held liable in the event of force majeure preventing the execution of services.

Force majeure includes in particular:

- natural disasters
 - health crises
 - events beyond the Provider's control
-

ARTICLE 12 – PERSONAL DATA

Personal data is processed in accordance with the website's Privacy Policy.

The Client has the right to:

- access
- rectification
- deletion
- objection

These rights may be exercised by contacting the Provider.

ARTICLE 13 – APPLICABLE LAW

These Terms are governed by French law.

In the event of a dispute, both parties agree to seek an amicable solution before taking legal action.

Failing agreement, the dispute will be brought before the competent courts.